PEOPLE WITH DISABILITY AUSTRALIA

A voice of our own

Inquiry into the 2025 federal election

Submission to the Joint Standing Committee on Electoral Matters

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About PWDA

People with Disability Australia (PWDA) is a national disability rights and advocacy organisation made up of, and led by, people with disability.

We have a vision of a socially just, accessible and inclusive community in which the contribution, potential and diversity of people with disability are not only recognised and respected but also celebrated.

PWDA was established in 1981, during the International Year of Disabled Persons.

We are a peak, non-profit, non-government organisation that represents the interests of people with all kinds of disability.

We also represent people with disability at the United Nations, particularly in relation to the United Nations Convention on the Rights of Persons with Disabilities (CRPD).

Our work is grounded in a human rights framework that recognises the CRPD and related mechanisms as fundamental tools for advancing the rights of people with disability.

PWDA is a member of Disabled People's Organisations Australia (DPO Australia), along with the First People's Disability Network, National Ethnic Disability Alliance, and Women with Disabilities Australia.

DPOs collectively form a disability rights movement that places people with disability at the centre of decision-making in all aspects of our lives.

The work of PWDA embraces the 'Nothing About Us, Without Us' motto of the international disability community and Disabled Peoples' International, the international organisation representing national organisations of people with disability in over 130 countries.

Introduction

PWDA welcomes the opportunity to provide a submission to the Joint Standing Committee on Electoral Matters' Inquiry into the 2025 federal election. This submission will address the Terms of Reference specific to the suitability and potential reform measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements.

PWDA is Australia's peak cross-disability Disability Representative Organisation. Nationally 5.5 million Australians have a disability, around 21.4% of the population.[i]

When compared with people without disability, people with disability continue to experience discrimination and poorer life outcomes across all life domains.[ii] It is estimated that 22% of people aged over 15 with disability in Australia have experienced some form of discrimination compared with 15% of those without disability.[iii] Disability discrimination is the largest ground of complaint to Anti-Discrimination NSW (ADNSW)[iv] and the Australian Human Rights Commission (AHRC).[v] Discrimination against people with disability appears deeply entrenched across systems.

Governments have an obligation to respect, protect and fulfil human rights.[vi] Disability Rights are Human Rights.

The overarching theme of this submission is that elements of the voting process require reform to improve accessibility, engagement and access. By doing so, this will improve the accessibility, engagement and trust in the process, by people with disability.

Summary of Recommendations

Polling places

Recommendation 1 – All electorates must work to ensure the majority of polling places are physically accessible to people who use mobility assistance devices

Recommendation 2 – All electorates should provide at least one polling place suitable for people who need a 'low sensory' environment free of extra noise, physical and visual intrusions

Recommendation 3 – All voting information (about the voting process, voting places, and candidates seeking election) should be provided in accessible formats at least 6 weeks in advance of the election

Informed voters

Recommendation 4 – Candidates for election must provide information about their policy positions in accessible formats 6 weeks prior to elections, and should provide contact information for voters need to engage with them in advance of election to inform themselves

Recommendation 5 – Assisted decision making resources should be provided for voters who need them

Improving access

Recommendation 6 – Accessible technology assisted voting options should be considered for federal elections in polling places, and online for voters who cannot attend

a polling place. Alternatives such as telephone voting must be provided for the same duration as other voting types, and options must be provided for electors who are overseas

Recommendation 7 – All staff at polling places should receive inclusion training to improve how they communicate with, and provide assistance to, voters, and where possible this should be delivered by staff with disability

Background

At the 2025 Federal election only 41 per cent of polling places were rated by the Australian Electoral Commission (AEC) as fully wheelchair accessible.

We acknowledge that in February 2025, amendments were made by the Electoral Legislation Amendment (Electoral Reform) Act 2025. A number of these took effect before the May federal election, including amendments that expanded the grounds on which voters can apply for a postal vote or cast a pre-poll vote to include disability.

However, in the 2025 election, only 14.5 per cent of postal voters were voters with disability and their carers according to the Australian Electoral Commission 2025 Federal Election Report.

More than 453,000 adult Australians are blind or have low vision, however the report found that only 2,327 voters who are blind or have low vision cast their vote using Telephone voting.

These figures indicate that further efforts are needed to explore ways to enhance current voting options and ensure they are effectively promoted to people with disability.

Polling places

Not all polling places are physically accessible for people who use mobility assistance devices or require step-free access due to mobility issues. This could relate to facilities not being step-free, to a lack of accessible parking, or to polling places being inaccessible by public transport. In some electorates it is difficult and/or expensive to reach an accessible polling place, and this is exacerbated when electorates are spread over a large geographic area.

People may not have confidence in the alternative voting methods provided. People who need to use telephone voting report difficulty remembering the long list of candidates, and that this reduces their confidence using this system. Applying for a postal vote, while it may assist a person who has physical access issues to obtain ballot form, does not help if the person needs assistance to read and understand the form. People may also struggle to return the form on time if postal facilities are not available close by.

Recommendation 1 – All electorates must work to ensure the majority of polling places are physically accessible to people who use mobility assistance devices.

Polling places can be overwhelming for people with sensory or psychosocial disabilities. Crowds, noise, and party supporters attempting to provide how to vote information can be stressful. People may be unable to wait standing in queues. These experiences can lead to people avoiding voting.

From our representation on the AEC's Disability Advisory Committee, PWDA is aware of the successful low sensory voting trial held on Wednesday 16 August 2023 at pre-polling by the Victorian Electoral Commission in the Warrandyte by-election. Whilst some voters had issues with the behavior of campaign workers, overall low sensory voting was welcomed by this who used it. PWDA calls for low sensory voting options to be provided in

every electorate in federal elections, and for electoral and campaign workers to be trained to support this form of voting appropriately.

Recommendation 2 – All electorates should provide at least one polling place suitable for people who need a 'low sensory' environment free of extra noise, physical and visual intrusions.

Currently, polling places identified as accessible may not include all the accessible features such as: wheelchair accessibility, virtual Auslan interpreter service, magnifier and maxi-pen. There may not be information included about accessible parking and other features people need to access polling places. This can lead to confusion.

Recommendation 3 – All voting information (about the voting process, voting places, voting facilities, and candidates seeking election) should be provided in accessible formats at least 6 weeks in advance of the election.

Informed voters

Currently candidates do not have to provide information about their policy positions in accessible formats. This can prevent people with disability from understanding what each candidate stands for. Candidates may also choose not to provide direct contact details in advance of an election, which makes it difficult for voters with disability to engage with them. All of this makes it difficult for people with disability to inform themselves in advance of an election, so that they can cast an informed vote. This undermines the democratic process and could contribute to mistrust in voting.

Recommendation 4 – Candidates for election must provide information about their policy positions in accessible formats 6 weeks prior to elections and should provide contact information for voters need to engage with them in advance of election to inform themselves.

Some people with disability report that they have been discouraged from voting, rather than being provided with resources and assisted decision making to help them exercise choice.

Recommendation 5 – Assisted decision making resources should be provided to voters who need them.

Improving access

PWDA is aware that the RFI for Technology Assisted Voting (TAV) for the 2027 NSW Election was issued in February 2024, and has closed. We recommend the Australian Electoral Commission consider options to introduce inclusive Technology Assisted Voting in federal elections to ensure people who are blind or have low vision can cast their vote independently, in the same way as their peers.

For people who are blind or have low vision, telephone voting has been offered as an alternative. This is inaccessible for people who are deaf/blind. While options like telephone voting and braille materials exist, many voters don't know about them – and polling place staff often aren't trained to provide proper support, according to NSW Guide Dogs.

Telephone voting requires voters to remember long lists, and it can be difficult to hear clearly if the person reciting the list is working in a place with background noise. During the last NSW State election telephone voting was not open for the same duration as polling places and was not available to electors who were overseas.

Recommendation 6 – Accessible technology assisted voting options should be considered for federal elections in polling places, and online for voters who cannot attend a polling place. Alternatives such as telephone voting must be provided for the same duration as other voting types, and options must be provided for electors who are overseas.

There are 5.5 million Australians with disability, representing 21.4 per cent of the total population. However, only 2.55 per cent of temporary election workers at the 2025 federal election were people with disability.

Recommendation 7 – All staff at polling places should receive inclusion training to improve how they communicate with, and provide assistance to, voters, and where possible this should be delivered by staff with disability.

CRPD Rights

The Convention on the Rights of Persons with Disabilities (CRPD)[vii] requires the following:

Article 29 - Participation In Political And Public Life

> "…States Parties shall guarantee to persons with disabilities political rights and the opportunity to enjoy them on an equal basis with others, and shall undertake:
>
> a) To ensure that persons with disabilities can effectively and fully participate in political and public life on an equal basis with others, directly or through freely chosen representatives, including the right and opportunity for persons with disabilities to vote and be elected, inter alia, by:
>
> i. Ensuring that voting procedures, facilities and materials are appropriate, accessible and easy to understand and use;
>
> ii. Protecting the right of persons with disabilities to vote by secret ballot in elections and public referendums without intimidation, and to stand for elections, to effectively hold office and perform all public functions at all levels of government, facilitating the use of assistive and new technologies where appropriate;
>
> iii. Guaranteeing the free expression of the will of persons with disabilities as electors and to this end, where necessary, at their request, allowing assistance in voting by a person of their own choice;
>
> b) To promote actively an environment in which persons with disabilities can effectively and fully participate in the conduct of public affairs, without discrimination and on an equal basis with others, and encourage their participation in public affairs, including:

> i. Participation in non-governmental organizations and associations concerned with the public and political life of the country, and in the activities and administration of political parties;…"

The voting process must uphold our CRPD rights. The real-world application of these rights requires that the Australian Government continue to evolve the voting processes, staff training, information about voting, polling places, and candidates to a standard of accessibility and inclusion that enables people with disability to exercise our political rights on an equal basis with people without disability. Improvements must be codesigned and led by people with disability.

Conclusion

PWDA appreciates the AEC's efforts to improve voting accessibility and inclusion in the lead up to the 2025 federal election, including engaging with the Disability Advisory Committee to inform ways to improve the voting experience for people with disability and creating co-designed educational materials and resources.

We recognise that the AEC provided assistive technology including a virtual Auslan interpreter service at every polling place, and hearing loops and text-to-speech pens at selected polling places in each electorate.

However further reform is required.

Improving access to information in accessible formats about candidates seeking election, improving the number and types of accessible polling places, ensuring that wherever possible all accessibility barriers are removed, and improving staff training will continue to build engagement and trust in the voting process and allow all voters to participate equally.

PWDA would be happy to meet with members of the Committee on any matters relating to potential reform measures to ensure universal voter access.

PEOPLE WITH DISABILITY AUSTRALIA

People with Disability Australia (PWDA) is a national disability rights and advocacy organisation made up of, and led by, people with disability.

For individual advocacy support contact PWDA between 9 am and 5 pm (AEST/AEDT) Monday to Friday via phone (toll free) on **1800 843 929** or via email at

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[i] Australian Bureau of Statistics *Disability, Ageing and Carers, Australia: Summary of Findings.* https://www.abs.gov.au/statistics/health/disability/disability-ageing-and-carers-australia-summary-findings/

[ii] Rosemary Kayess and Therese Sands, *Convention on the Rights of Persons with Disabilities: Shining a light on Social Transformation* (UNSW Social Policy Research Centre, 2020); Australian Bureau of Statistics (n1); Australian Institute of Health and Welfare (n 1); Jeromey B Temple, Margaret Kelaher and Ruth Williams, 'Discrimination and avoidance due to disability in Australia: evidence from a National Cross-Sectional Survey' (2018) 18 *BMC Public Health* 1347.

[iii] Australian Institute of Health and Welfare (n 1) 163.

[iv] Anti-Discrimination NSW, *Annual Report 2021-22* (2022) 15 https://antidiscrimination.nsw.gov.au/documents/annual-reports/anti-discrimination-annual-report-2021-22.pdf

[v] Australian Institute of Health and Welfare (n 1) 163.

[vi] Committee on the Rights of Persons with Disabilities, *General comment No. 6 (2018) Equality and non-discrimination* CRPD/C/GC/6 (26 April 2018) [30]; Australian Human Rights Commission, *Free and Equal. A reform agenda for federal discrimination laws* (December 2021) 16; United Nations, *Convention on the Rights of Persons with Disabilities* (12 December 2006), article 5.

[vii] United Nations, Department of Economic and Social Affairs Social Inclusion, Convention on the Rights of Persons with Disabilities, last accessed 11 July, 2024, https://social.desa.un.org/issues/disability/crpd/convention-on-the-rights-of-persons-with-disabilities-crpd